



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Brandon T. Gilchrist, Planner I
Subject: PUDC-24-29 / South of High Plains R. & West of South Greeley HWY / 201 Agreement
Date: March 10, 2024

Background:

The item for consideration is an exception to Cheyenne Water and Sewer District intergovernmental agreement (201 IGA) to implement the 1982 Wastewater Facilities Master Plan. This is approved by resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: March 10, 2025
- Public Services Committee: March 17, 2025
- Final Consideration: March 24, 2025

Planning Commission Recommendation:

The Planning Commission heard this item at their March 3, 2025, meeting and voted to recommend the Governing Body approve this exception.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION GRANTING AN EXCEPTION TO THE '201 AGREEMENT' FOR THE OWNER OF THE PROPERTY LOCATED SOUTH OF HIGH PLAINS ROAD AND WEST OF SOUTH GREELEY HIGHWAY, BETWEEN ROBERT AVENUE AND DAYSHIA LANE."

WHEREAS, on April 25, 1983, the City of Cheyenne ("City"), the County of Laramie ("County"), the City of Cheyenne Board of Public Utilities ("BOPU"), and the South Cheyenne Water and Sewer District ("District") entered into an agreement entitled "Memorandum of Agreement: Intergovernmental Contract Agreeing to Participate in the Implementation of the Findings of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District and Laramie County";

WHEREAS, the April 25, 1983, agreement is commonly referred to as the "201 Agreement";

WHEREAS, the 201 Agreement defines the respective responsibilities and obligations of the signatory governmental entities with respect to the implementation of the "201 Facilities Plan" that was created in response to the requirements of Section 201 of the Federal Water Pollution Control Act;

WHEREAS, one of the principal purposes of the 201 Agreement is to ensure that wastewater (sewage) generated in the areas immediately surrounding the corporate limits of the City of Cheyenne would preferentially be disposed of through the sanitary sewer systems operated by BOPU;

WHEREAS, the 201 Agreement defines the "service area boundary" sometimes referred to as the "sewerable boundary" or "201 Area" as the area that "can be provided with Municipal Sewage Treatment Services via gravity flow";

WHEREAS, Applicant is requesting a 201 Exception as owner of a residential property that lies within the City of Cheyenne jurisdiction as well as within the 201 Area, specifically Parcel Identification No. 1366290001400, which is 10.57-acres in size, is legally described as a portion of Section 29, Township 13 North, Range 66 West of the 6th Principal Meridian, Laramie County, Wyoming, and is more particularly described as follows:

A PARCEL OF LAND SITUATE IN THE NORTH 1/2 OF SEC 29, DESC AS: BEG AT A POINT, MONUMENTED WITH A 2" BRASS CAP, ON THE WEST R/W LINE OF US HWY 85, SAID POINT BEING COINCIDENT WITH THE NORTHEAST CORNER OF TRACT 90, BISON CROSSING, 4TH FILING, AND WHICH POINT BEARS S.50 DEG 30'57"E. FROM THE NORTHWEST CORNER OF SAID SEC 29, 3,614.10'; TH N.89 DEG 23'00"W., ALONG THE NORTH LINE OF SAID BISON CROSSING SUBDIVISION, 4TH FILING, 503.26' TO THE EAST LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.00 DEG 37'36"W., ALONG SAID EAST LINE, 926.69' TO

THE NORTH LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.82 DEG 21'13"W., ALONG SAID NORTH LINE, 40.01' TO THE SOUTHEAST CORNER OF TRACT 4, CATHCART SUBDIVISION; TH N.00 DEG 34'08"W., ALONG THE EAST LINE OF SAID TRACT 4, 279.95' TO THE SOUTH R/W LINE OF ROBERT AVENUE; TH S.89 DEG 24'51"E., ALONG SAID SOUTH LINE, 80.02' TO A THE NORTHWEST COMER OF TRACT 3, CATHCART SUBDIVISION; TH S.00 DEG 34'08"E., ALONG THE WEST LINE OF SAID TRACT 3, 289.88' TO THE SOUTHWEST CORNER OF SAID TRACT 3; TH S.89 DEG 24'46"E., ALONG THE SOUTH LINE OF SAID TRACT 3, 427.47' TO THE WEST R/W LINE OF US HWY 85; TH S.02 DEG 50'46"E., ALONG SAID WEST LINE, 923.43' TO THE POB.

WHEREAS, the Applicant seeks to install a small wastewater system [septic system] at a cost of approximately \$14,500.00 rather than pay an estimated cost of \$316,650.00 to extend sanitary sewer service approximately 330 linear feet to the Applicant's property;

WHEREAS, pursuant to Section 3.4(d) of the 201 Agreement, Laramie County government agreed to work with the City-County Health Unit to "ensure that no new permits for small wastewater treatment systems within the service area boundary that are inconsistent with the Facility Plan are issued";

WHEREAS, exceptions for the installation of small wastewater treatment systems may be granted pursuant to Section 4.1 of the 201 Agreement, and the Applicant has applied for such an exception;

WHEREAS, Section 4.1 provides in relevant part that an exception may be granted if it "will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. Section 4.1 further provides that a "hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception;" and

WHEREAS, upon finding that a demonstrable hardship exists under Section 4.1 of the 201 Agreement, on March 3, 2025, the City Planning Commission recommended that the Governing Body grant the Applicant's 201 Exception to permit the installation of a small wastewater system on the subject property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, the City of Cheyenne hereby consents to the granting of an exception pursuant to Section 4.1 of the 201 Agreement to permit the installation of a small wastewater system, as the exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship; and

BE IT FURTHER RESOLVED, that the City of Cheyenne hereby consents to the granting of an exception pursuant to Section 4.1 of the 201 Agreement on the condition that the property be required to connect to sanitary sewer should it become readily available.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk



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Planning and Development Department

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CITY OF CHEYENNE PLANNING COMMISSION

March 3, 2025

STAFF REPORT

FILE: **PUDC-25-29: 0 S Greeley HWY - 201 Exception**

REQUEST: 201 Exception to allow installation of a sanitary sewer.

LOCATION: Located south of High Plains Road and west of South Greeley Highway, between Robert Avenue and Dayshia Lane.

APPLICANT: Jason Gray

OWNER: Jason Gray, OH HAIL NO, LLC

ZONING: Planned Unit Development PUD

CASE PLANNER: Brandon T. Gilchrist, Planner I



RECOMMENDED MOTION(s):

Move to recommend the City Council **approve** the exception to the 201 Facilities Plan requirement for City sewer service, with conditions as listed in the staff report.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- Cheyenne Municipal Code Chapter 1.16 (Annexation and Infrastructure Improvements)
- Cheyenne Municipal Code Chapter 13.12 (Sewer System)
- 201 Intergovernmental Agreement to participate in the implementation of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District, and Laramie County (1983) (IGA)
- 201 Facilities Plan Final Report (1982)
- Plan Cheyenne

The request for an exception must be submitted to the Planning Commission for review. After the Commission review, the exception would be approved or denied by the City Council. If the property seeking the exception is outside the city's Corporate Limits and inside the 201 Service Area Boundary, then County Commissioner approval is also required.

BACKGROUND:

In 1982 the City, County, and south Cheyenne Water and Sewer District executed an intergovernmental agreement to implement the 1982 Wastewater Facilities Master Plan. The plan and the IGA were intended to satisfy the Federal Clean Water Act requirements and to protect the safety and quality of the region's groundwater from pollution, specifically from septic system failures.

The IGA requires connection to sewer systems for development of properties lying within the Urban Service Area identified in the Plan. The Facilities Plan defines the Urban Service Area as the area where "Municipal Sewerage Treatment services can be provided via gravity flow" [Section 1.0, Definitions of the IGA]. The IGA further states that the City of Cheyenne is to limit the use of on-site wastewater treatment systems within the Urban Service Area; this would include septic systems and package wastewater treatment plants. The IGA states that the City and County will not approve any development which is inconsistent with the Facility Plan unless granted an exception pursuant to Sections 4.0 to 4.7 of the IGA.

The applicant applied for a permit to allow a self-contained septic holding tank. The permit was denied. After denial, the applicant was eligible to apply for an exception pursuant to the IGA. The request for an exception must be submitted to the Planning Commission for review. After Commission review, the exception would be approved or denied by the City Council and the County Commissioners if the property seeking the exception is outside the Corporate Limits of the City and inside the 201 Service Area Boundary.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-Used Commercial	Planned Unit Development	Vacant
North	Mixed-use Commercial	Planned Unit Development	Residential
South	Mixed-use Commercial	Agricultural Residential	Residential
East	Mixed-use Commercial	Planned Unit Development	Residential
West	Industrial	Agricultural	Agricultural

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve the exception, the Commission must make the following findings per Sections 4.0 to 4.7 of the 201 IGA. A detailed analysis is below:

Section 4.0: EXCEPTIONS FOR DEVELOPMENT THAT IS NOT CONSISTENT WITH THE PROPOSED FACILITY PLAN:***4.1 Exceptions can be granted for the following reasons:***

(a) The proposed exception conforms with the criteria for exceptions in The City of Cheyenne Annexation Policies.

(b) The exception can be shown not to be detrimental to the public health, safety and welfare [sic].

(c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception.

(d) The exception demonstrates substantial compliance with the proposed Facility Plan.

Reason (a): This property is outside the City limits and does not have sanitary sewer readily available. An off-site sanitary sewer main extension would be required. The closest BOPU sewer main is in Loving Trail approximately a half mile away. This proposal seeks an exception from tying into the sanitary sewer system for a future warehouse. A lift station may also be needed.

Reason (b): The proposed facility is on a parcel that is roughly 10.57 acres. Throughout the County, septic systems are allowed on 5-acre lots, and approving this exception would be consistent with standard County development requirements.

Reason (c): The estimated cost of extending a sewer main is \$461,825.00, at this time the applicant was unable to provide a cost estimate for the proposed holding tank, but it is highly likely that a septic system would be less than 5% of the cost of extending the sewer.

Reason (d): The facility would maintain the principal goal of the IGA – that is to prevent the excessive environmental pollution of the land. Typical county development allows septic systems on 5-acre parcels, and, if approved, this would establish two septic systems on a 10.57-acre parcel.

4.2. Exceptions may only be considered if the proposal has been denied due to non-conformance with the proposed Facility Plan.

The applicant applied for a permit to allow a small wastewater system on February 10, 2025. The permit was denied on February 11, 2025. After denial, the applicant applied for an exception pursuant to the IGA.

4.3. The request for exception must be submitted to the Planning Commission for review.

This proposal is being submitted to the Planning Commission.

4.4. After Planning Commission review, the exception will be approved or disapproved by: (a) The City Council if the property seeking exception is within the Corporate Limits; (b) The City Council and County Commissioners if the property seeking exception is outside the Corporate Limits and inside the Service Area Boundary.

The property seeking an exception is currently outside of the City limits of the City of Cheyenne, and the exception will be submitted to the City Council after the Planning Commission review. It has also been submitted to the county commissioners.

4.5 (Due to a formatting error in the original Agreement, there is no Section 4.5)

4.6. The replacement of an existing on-site wastewater treatment system on a property that is neither contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement.

This Section is not applicable to this proposal.

4.7. The installation of a new on-site wastewater system on a single lot within the Service Area Boundary that is not contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement, provided that the lot meets all the requirements of the Subdivision Regulations and any other requirements of this Agreement and was platted prior to the effective date of this Agreement.

This Section is not applicable to this proposal.

RELEVANT PLANCHEYENNE POLICIES

The following PlanCheyenne policies are related to this project:

Foundation 1—Growing as a Community of Choice
Policy 1.1.C: Regional Coordination on Land Use and Development Issues.

Foundation 7—Developing in a Fiscally Responsible Way
Principle 7.1: Our community will coordinate and plan for growth regionally to ensure efficient and cost-effective services and utilities.
Principle 7.2: The Cheyenne Area will provide adequate public facilities and services for current and future residents in a fiscally responsible manner.

The IGA was created to coordinate regionally on environmental health. The proposed small wastewater system provides a service commonly available to parcels that do not have readily available sewers. This proposal is to place a warehouse on the property, allowing the property to be usable. The extension of the sewer is cost prohibitive for this style of development.

The exception request **complies** with the goals of PlanCheyenne.

CONCLUSION:

The staff's analysis is that the application meets the requirements to qualify for a 201 Exception.

ALTERNATIVES:

1. Recommend the Governing Body approve the exception as submitted by the applicant.
2. Recommend the Governing Body approve the exception subject to Staff's recommended conditions (**Staff Recommendation**).
3. Recommend denial of the exception based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the item until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to Staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Planning Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for a recommendation to approve or deny.

STAFF'S RECOMMENDATION(s):

Staff recommends the Planning Commission recommend approval of the exception to the 201 Facilities Plan requirement for City sewer service to be extended to this property and permit installation of a septic holding system, subject to the following condition:

1. At such time that a Board of Public Utilities' sanitary sewer line is extended to the property, the property owner shall connect to available City utilities meeting all applicable requirements.

ATTACHMENTS:

1. Master Application
2. Cheyenne-Laramie County Health Denial Letter
3. Cost estimated for sewer